

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,
Complainant,
v.

DOCKET NO. 25-14

OAK WAY CARGO, LLC,
Respondent.

SECOND JOINT MOTION TO EXTEND SCHEDULING ORDER DEADLINES

Complainant, WAY2GO CARGO CORP. and Respondent, OAK WAY CARGO, LLC, by and through their respective counsel, and pursuant to Federal Rules of Civil Procedure 16(b)(4), and all other applicable rules, orders and case law, hereby file this Second Joint Motion to Extend Scheduling Order Deadlines (“Motion”), and in support thereof, state as follows:

1. On February 4, 2026, the ALJ issued an Order Granting Joint Motion to Extend Scheduling Order Deadlines.

2. Since then, the parties have worked together to confer on narrowing deposition topics for Respondent’s corporate representative, which has been rescheduled and is currently noticed for March 2, 2026.

3. As of the date of this filing, Respondent’s document production in response to Complainant’s First and Second Requests for Production is outstanding. Respondent maintains that it needs an order granting a Stipulated Confidentiality Order before it can begin production. According to Respondent, Respondent and Complainant are in the same industry, and the information that Complainant seeks goes to the heart of Respondent’s business. Respondent seeks a court order to ensure that the documents it will be producing will not be misused or disclosed publicly.

4. To that end, the parties submitted a Joint Motion for Entry of a Stipulated Confidentiality Order on February 26, 2026.

5. The parties seek a 14-day extension to the current deadlines set forth in the Commission's February 4, 2026, Order Granting Joint Motion to Extend Scheduling Order Deadlines.

6. Good cause exists for this request, as Complainant is in need of additional time to depose the Respondent's corporate representative after receiving Respondent's document production, and Respondent is not available for deposition again until March 18, 2026.

7. Complainant would be prejudiced without the extension of time to complete the deposition of Respondent and disclose its expert witness and a report.

8. Thus, given that: (1) discovery is still ongoing; (2) the parties require time to engage in additional discovery; and (3) the parties are in agreement that additional time beyond the current deadlines is necessary for parties to complete fact discovery, expert disclosures, and expert depositions, the parties seek to extend the current case management deadlines.

9. Counsel for the parties believe that it would be in the interests of judicial economy and the appropriate presentation of this matter if the above-stated deadlines set forth in the Scheduling Order are extended.

10. No party would suffer any prejudice or inconvenience as a result of the relief requested in this Motion. To the contrary, the parties are jointly requesting the relief sought through this Motion.

11. The parties certify they are not seeking the requested relief for any improper purpose. Rather, they do so to provide all parties with sufficient opportunity to prepare the case and make an appropriate presentation to the Commission and factfinder.

12. Undersigned counsel certify that this Motion is made in good faith and not for the purposes of delay or other improper purpose.

13. The undersigned certify that the parties have conferred in good faith concerning the above-requested deadlines and are serving this Motion jointly.

WHEREFORE, the Parties respectfully request the Commission enter an order extending the deadlines in the February 4, 2026, Order Granting Joint Motion to Extend Scheduling Order Deadlines as follows:

March 23, 2026	Complete Fact Discovery
March 30, 2026	Disclosure-Initial Expert Reports
April 6, 2026	Disclosure-Rebuttal Expert Reports
April 13, 2026	Complete Expert Depositions
April 13, 2026	Close of Discovery and Completion of Depositions (if any)
May 26, 2026	Complainant's Brief, Proposed Findings of Fact, and Appendix
June 15, 2026	Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
June 29, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

and granting any further relief the Commission deems just and proper.

Dated: February 27, 2026.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at zkass@b2b.legal on this 27th day of February 2026.

BY: /s/ Jennifer S. Roldan
Jennifer S. Roldan, Esq.